

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ISAAC SHANNON,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, JOSE TAVAREZ (NYPD POLICE OFFICER
BADGE #2044) and JOHN DOES 1-5 (Unidentified NYPD
Officers),

Defendants.

INDEX NO.

Plaintiff designates New
York County as the place of
trial.

SUMMONS

The basis of venue is the
County where action arose.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
September 15, 2023



Ricardo J. Martinez

LEAV & STEINBERG, LLP

Attorneys for Plaintiff

75 Broad Street, Suite 1601

New York, New York 10004

(212) 766-5222

To:

THE CITY OF NEW YORK

100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

JOSE TAVAREZ

c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK

ISAAC SHANNON,

Plaintiff,

INDEX NO.

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, JOSE TAVAREZ (NYPD POLICE OFFICER
BADGE #2044) and JOHN DOES 1-5 (Unidentified NYPD
Officers),

Defendants.

Plaintiff, ISAAC SHANNON, by his attorneys, LEAV & STEINBERG, LLP, as and for
his Verified Complaint, respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. The plaintiff, ISAAC SHANNON, at all times herein mentioned was and still is a
resident of the County of New York and the State of New York.

2. At all times herein mentioned, defendant THE CITY OF NEW YORK, was and
still is a municipal corporation, created, organized and existing under and by virtue of the laws of
the State of New York.

3. Prior to the commencement of this action, a notice of claim in writing was served
on behalf of ISAAC SHANNON, upon THE CITY OF NEW YORK in accordance with Section
50-e of the General Municipal Law.

4. Within ninety days (90) of the occurrence herein, a notice of claim in writing was
served on behalf of ISAAC SHANNON, upon THE CITY OF NEW YORK in accordance with
Section 50-e of the General Municipal Law.

5. Within ninety days (90) of September 1st, 2022, a notice of claim in writing was
served on behalf of ISAAC SHANNON, upon THE CITY OF NEW YORK in accordance with
Section 50-e of the General Municipal Law.

6. Prior to the commencement of this action, notice of the intention of ISAAC SHANNON to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of ISAAC SHANNON upon THE CITY OF NEW YORK.

7. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK neglected and has refused to pay said claim or adjust same.

8. A hearing pursuant to General Municipal Law 50-h has been held.

9. This action is commenced within one (1) year and ninety (90) days from February 11, 2022, the date the accident as herein set forth occurred.

10. That at all times herein mentioned, Defendant JOSE TAVAREZ was acting within the scope and course of his employment with the New York City Police Department, and under color of State Law.

11. That at all times herein mentioned, Defendant JOSE TAVAREZ was acting in his individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

12. That at all times herein mentioned, Defendants JOHN DOES 1-5 were acting within the scope and course of their employment with the New York City Police Department, and under color of State Law.

13. That at all times herein mentioned, Defendants JOHN DOES 1-5 were acting in their individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

14. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

15. On or about July 4th, 2022, at approximately 10:40 P.M., Plaintiff ISAAC SHANNON was lawfully in front of or near the corner of W. 141st Street and 7th Avenue, New York, New York.

16. At said time and place plaintiff was acting lawfully when he was assaulted, battered, and unlawfully detained by the defendants.

17. After hours of detainment in the holding cell, Plaintiff was released from police custody and all charges were eventually dismissed.

18. Plaintiff was severely injured as a result of the subject incident.

19. The individual Defendants, JOSE TAVARES and JOHN DOES 1-5, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff of his rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of his person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against them by police; (e) freedom from abuse of process; and (f) the enjoyment of equal protection, privileges and immunities under the laws.

20. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

21. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices of the CITY OF NEW YORK which were in existence at the time of the conduct alleged herein and were engaged in with the full

knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

22. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

23. Defendants JOSE TAVAREZ and JOHN DOES 1-5 detained, incarcerated and assaulted Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said detainment and incarceration would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

24. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

25. On or about July 4th, 2022, Defendants did stop, seize, search, assault and commit a battery and grab the persons of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the detainment process in an unlawful and excessive manner.

26. The Plaintiff was falsely detained and unlawfully imprisoned/detained without the Defendants' possessing probable cause to do so.

27. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person.
- b. Freedom from battery to his person.
- c. Freedom from the use of excessive force during the arrest process.

28. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.

29. Defendant THE CITY OF NEW YORK and NEW YORK CITY POLICE

DEPARTMENT have grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.

30. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering to his detriment.

31. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

32. That on or about July 4th, 2022, at approximately 10:40 P.M., Defendants, jointly and severally in their capacity as a police officer, wrongfully assaulted, stopped, handcuffed and seized the Plaintiff about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to enter, stop, handcuff, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

33. As a result of the aforementioned actions, Defendant deprived Plaintiff of the right to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

34. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right against the use of excessive force against their persons secured by the Constitution and Laws of the United States of America and the Fourth, Fifth, and Fourteenth Amendments.

35. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

36. That by reason of the false arrest, imprisonment and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was

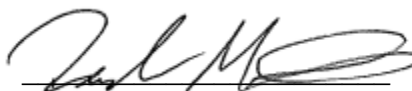
greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and were caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

37. The aforementioned constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York state law.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
September 15, 2023

LEAV & STEINBERG, LLP



Ricardo J. Martinez
Attorneys for Plaintiff
ISAAC SHANNON
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New York, New York 10004
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**ATTORNEY'S
VERIFICATION**

Ricardo J. Martinez, an attorney duly admitted to practice law in the State of New York, makes the following affirmation under the penalty of perjury:

I am a partner of firm of LEAV & STEINBERG, L.L.P., the attorneys of record for the plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
September 15, 2023



Ricardo J. Martinez

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ISAAC SHANNON,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, JOSE TAVAREZ
(NYPD POLICE OFFICER BADGE #2044) and JOHN DOES 1-5 (Unidentified NYPD
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Defendants.

SUMMONS and VERIFIED COMPLAINT

LEAV & STEINBERG, LLP

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